

02:00 PM **LINE 3**

23-CLJ-04771

NAVY FEDERAL CREDIT UNION VS. SHANNON L WATKINS

NAVY FEDERAL CREDIT UNION
SHANNON L WATKINS

REA STELMACH
PRO SE

Motion to Set Aside Notice of Conditional Settlement

TENTATIVE RULING:

Plaintiff Navy Federal Credit Union's Motion to Vacate Notice of Conditional Settlement is **DENIED**.

Plaintiff filed a Notice of Conditional Settlement of Entire Case on October 25, 2024. Plaintiff has moved to set aside that Notice of Settlement. However, the motion is not supported by a declaration or any other evidence establishing the terms of the proposed settlement, defendant's failure to execute the written settlement agreement, or defendant's failure to perform payment obligations under the settlement agreement.

If the plaintiff or other party required to serve and file a request for dismissal within 45 days after the dismissal date specified in the notice does not do so, the court must dismiss the entire case unless good cause is shown why the case should not be dismissed.

(Cal. Rules of Court, rule 3.1385 subd. (c)(2).)

Here, no good cause has been shown because plaintiff has not established by any admissible evidence that the case should not be dismissed. The motion is accordingly **DENIED**.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 4**

24-CIV-01161

JEFERSON ALEXIS ZECENA CANO, ET AL VS. GPI BUILDERS INC., ET AL

JEFERSON ALEXIS ZECENA CANO
GPI BUILDERS INC.

T P SKINNER
SARIT SIMHAYOFF-COEHN

Motion to Compel T-Mobile to Comply with Subpoena Duces Tecum

TENTATIVE RULING:

The unopposed Motion to Compel T-Mobile U.S., Inc.'s Compliance with Civil Subpoena *Duces Tecum* filed by plaintiff Jeferson Alexis Zecena Cano is **GRANTED**.

Plaintiff alleges that defendants misclassified him as an independent contractor when they employed him for three remodeling projects, and failed to reimburse him for expenses related thereto, resulting in numerous violations of employment law.

Plaintiff has moved for a court order compelling non-party T-Mobile U.S., Inc. to produce documents responsive to the civil subpoena *duces tecum* which he served upon it.

On November 21, 2025, plaintiff served a subpoena on T-Mobile seeking his own phone records. (Skinner Decl., ¶ 4, & exh. A). T-Mobile objected on January 5, 2026. (*Id.*, ¶ 5, & exh. B.)

T-Mobile refused to produce the documents, but indicated that it would comply with a subpoena that was accompanied by a valid court order. T-Mobile's objection appears primarily to be that since the target phone numbers are those of a subscriber in California, the subpoena is void unless accompanied by the account holder's consent. (Skinner Decl., exh. B at p. 9.) However, the subpoena did include such consent. (*Id.*, exh. A, at p. 7.) Nonetheless, the objection clearly states that, "COURT ORDER REQUIRED FOR RELEASE OF RECORDS." (*Id.*, exh. B, at p. 9.)

There is good cause to compel the production of the requested documents.

The documents are pertinent to showing the relationship between plaintiff and defendant Bennaim, if any. Bennaim denies knowing or communicating with plaintiff. (Skinner Decl., ¶ 3.)

Plaintiff also asserts that he owns the phone number and account with T-Mobile, and created the records. The court notes that the subpoena actually seeks the records of two phone numbers described as assigned to plaintiff, and includes but is not limited to calls to a specified third phone number (Skinner Decl., exh. A, at p. 6), which presumably belongs to defendant Bennaim.
